

25STCV11956 25STCV11956

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C09%2F02%2F2026

Source SHA-256: 72649bfb32faa0d4359a7bd3e9a32a133adc551bc02f603b66e58a225ecfd379

Case Number: 25STCV11956 Hearing Date: September 2, 2026 Dept: 512

HEARING

DATE: Weds., September 2, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Glassman

v. Roots, Inc. COMPL.

FILED: 04-24-25

CASE NUMBER: 25STCV11956

NOTICE:

OK

PROCEEDINGS: MOTION TO CONTINUE TRIAL AND ALL TRIAL RELATED DATES

MOVING PARTY: Defendant Roots, Inc.

RESP. PARTY: Plaintiff Nina Glassman

MOTION TO CONTINUE TRIAL

(CRC, Rule 3.1332)

TENTATIVE RULING:

Defendant Roots, Inc.'s Motion to Continue Trial Date and All Related
Pretrial and Discovery Deadlines is GRANTED.

Jury Trial is CONTINUED to June 21, 2027 at 9:30 a.m. Final Status

Conference is continued to June 11, 2027 at 9:30 a.m. Counsel of record are ordered to appear in person at the Final Status Conference. Parties are to follow Department 512's courtroom rules for trial preparation.

All pre-trial discovery cut-off and motion deadlines will be in accordance with the new trial date.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 20, 2026 ☐
Late ☐ None

REPLY: Filed
on August 26, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On April 24, 2025, Plaintiff Nina Glassman ("Plaintiff") filed the instant action against Defendant Roots, Inc. ("Defendant") and Does 1-20.

On July 14, 2025, Defendant filed an Answer.

On September 8, 2025, Defendant filed an Amended Answer.

On August 6, 2026, Defendant filed the instant Motion to Continue Trial Date and All Related Pretrial and Discovery Deadlines (the "Motion").

On August 20, 2026, Plaintiff filed an Opposition.

On August 26, 2026, Defendant filed a Reply.

II.

Legal Standard & Discussion

Parties'
Arguments

Defendant moves

to continue trial on the grounds that trial counsel substituted in on May 7, 2026; trial "counsel's review of the file revealed that the case is not in a triable posture: written discovery remains to be done, key percipient witnesses have not been deposed, and no expert work has been undertaken"; and the case was transferred to a new department at the Los Angeles Superior Court. (Motion, p. 7.) Further, Defendant contends trial is still four months out; there have been no prior continuances in this matter; Defendant needs to be able to adequately conduct discovery so there are no alternative means than a trial continuance; and Plaintiff will not suffer prejudice by a continuance. (Motion, pp. 7-9.) Defendant requests the Court continue trial by six months to May 11, 2027, or the first available date thereafter. (Motion, p. 9.)

In Opposition, Plaintiff

contends the Motion should be denied because Defendant waited 85 days to file this Motion after requesting Plaintiff stipulate to a trial continuance; Defendant has not asked for or served discovery or depositions in the last three months since new counsel joined; and the Motion does not address the significant, unanticipated change in judicial officer that impacts this case. (Opp., pp. 1-4.) Further, Plaintiff contends the other factors Defendant relies on – proximity of trial date, prior continuances, length of continuance, alternative means, and prejudice – weigh against Defendant's request for a trial continuance. (Opp., pp. 5-6.) Thus, Plaintiff contends Defendant has not shown good cause for a trial continuance. (Opp., p. 5.) However, should the Court continue

trial, Plaintiff requests the Court “condition the grant on Defendant’s agreement that the motion for summary judgment and/or adjudication deadline has expired and will not renew with the new trial date.” (Opp., pp. 5-6.)

In Reply,

Defendant emphasizes that despite Defendant’s diligence, significant discovery remains pending to prepare for trial, including expert and non-expert additional discovery, subpoenaing of Plaintiff’s records, and conducting Plaintiff’s independent medical examination. (Reply, p. 2.) Further, Defendant states that Defendant’s prior outreach to counsel to stipulate for a trial continuance was part of settlement discussions and in regard to scheduling mediation (Reply, pp. 2-3.), and the Opposition confirms that Plaintiff, too, has outstanding discovery that needs to be completed prior to the current discovery cut-off dates. (Reply, p. 4.) Defendant emphasizes arguments made in the Motion (Reply, pp. 4-6) and requests the Court deny Plaintiff’s request to bar continuance of the summary judgment/adjudication deadline. (Reply, pp. 6-7.)

Analysis

California Rules of Court, Rule

3.1332, subdivision (c) states: “Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” Circumstances that may indicate good cause include: the excused unavailability of a party, trial counsel, or witness; the substitution of trial counsel if the substitution is required in the interests of justice; the addition of a new party in certain circumstances; a party’s excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or a significant, unanticipated change in the status of the case. (Cal. Rules of Court, subd. (c)(1)-(7).)

The Court may also look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance, extension, or delay of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; (6) if the case is entitled to preferential trial setting; (7) the court’s calendar; (8) whether

trial counsel is engaged in another trial; (9) whether all parties have stipulated to the continuance; (10) whether the interests of justice are best served by the continuance; and (11) any other fact or circumstance relevant to the fair determination of the motion or application. (See generally Cal. Rules of Court, rule 3.1332, subd. (d)(1)-(11).)

Here, the Court finds the Motion makes an affirmative showing that good cause exists for a trial continuance in this matter. The Motion and evidence before the Court demonstrate defense counsel has acted diligently since associating into the case in May 2026; there is outstanding discovery unlikely to be completed by the current discovery cut-off dates; and there does not appear to be substantial prejudice to Plaintiff should a trial continuance be granted. (See Motion, Rastegar Decl.; Reply; Opp.) Thus, the Court finds that a trial continuance would give the parties time to complete discovery and adequately prepare for trial.

Further, the Court notes that this is the first continuance in this matter, the continuance request is limited, the interests of justice are best served by a continuance, and Plaintiff will not suffer prejudice from a brief trial continuance.

For these reasons, the Motion is GRANTED. All pre-trial discovery cut-off and motion deadlines will be in accordance with the new trial date.

III.

Conclusion & Order

Based on the foregoing, Defendant Roots, Inc.'s Motion to Continue Trial Date and All Related Pretrial and Discovery Deadlines is GRANTED.

Jury Trial is CONTINUED to June 21, 2027 at 9:30 a.m. Final Status Conference is continued to June 11, 2027 at 9:30 a.m. Counsel of record are ordered to appear in person at the Final Status Conference. Parties are to follow Department 512's courtroom rules for trial preparation.

All pre-trial

discovery cut-off and motion deadlines will be in accordance with the new trial date.